

Priya Soparkar

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

INCOME TAX APPEAL NO. 3260 OF 2018

Pr. Commissioner of Income-Tax-Central-1

...Appellant

Versus

Surendra L. Hiranandani

...Respondent

Mr. Akhileshwar Sharma, for the Appellant.

Mr. Madhur Agrawal i/by Mr. Atul Jasani, for the Respondent.

CORAM: SUMAN SHYAM &
GAUTAM A. ANKHAD, JJ.

DATED: 17th SEPTEMBER, 2026.

PC:-

1. Heard Mr. Akhileshwar Sharma, learned counsel appearing for the Appellant. Also heard Mr. Madhur Agrawal, learned counsel appearing for the Respondent.

2. This Appeal, filed under Section 260-A of the Income Tax Act, 1961 arises out of the common judgment and order dated 14th February, 2018, passed by the learned Income Tax Appellate Tribunal (ITAT for short), Mumbai in Income Tax Appeal No.3227/Mum/2017 for the Assessment Year 2009-10.

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3. The Appeals filed by the Department against the common order dated 14th February, 2018 pertaining to the Assessment Years 2008-09 and 2012-13 have already been dismissed by this Court on the ground that the substantial question of law projected therein stood answered by the Hon'ble Supreme Court in the case of *Principal Commissioner of Income Tax, Central-3 Vs. Abhisar Buildwell (P) Limited*, reported in (2023) 149 taxmann.com 399 (SC). There is no dispute about the fact that the same legal issues are involved in the present Appeal as well with the only difference that the present matter pertains to the Assessment Year 2009-10.

4. Mr. Akhileshwar Sharma, learned counsel for the Appellant has produced a copy of the order dated 16th July, 2026 passed by this Court in Income Tax Appeal No.2793 of 2018 and in Income Tax Appeal No.2788 of 2018, a perusal of which goes to show that the previous Appeals pertaining to Assessment Years 2012-23 and 2008-09, respectively, have already been dismissed by this Court on the same ground as noted above.

5. After going through the order dated 16th July, 2026, we are left with no manner of doubt that the present Appeal is covered by the said order and therefore, the Appeal is liable to be dismissed.

6. The Appeal is accordingly dismissed.

(GAUTAM A. ANKHAD, J.)

(SUMAN SHYAM, J.)